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Order QR

IN THE HIGH COURT OF JUDICATURE AT MADRAS

DATED: 23-10-2026

CORAM

THE HON'BLE MR.JUSTICE N.RAMESH

CRL OP No. 30764 of 2026

CNR: {HCMA012563802026}

1. Krishnaveni
   W/o Ganesan,
   No.66/99, Karuvanur,
   Kallavi Village, Uthangarai Taluk,
   Krishnagiri District.

Case QR

2. Rani
   W/o Kaliappan,
   Kilkurumbur Street,
   Supalli Pattu Village,
   Tirupathur District.

..Petitioner(s)

Vs

The State Rep by The Inspector of Police
Kallavi Police Station,
Kallavi, Krishnagiri District.
Crime no.144 of 2026.

..Respondent(s)

PRAYER : Criminal Original Petition filed under Section 483 of Bharatiya Nagarik Suraksha Sanhita, 2023, to enlarge the petitioners on bail pending investigation in Crime no.144 of 2026 on the file of the Inspector of Police, Kallavi Police Station, Kallavi, Krishnagiri District.

For Petitioner(s): Mr.G.Vinodhkumar

For Respondent(s): Mr.M.M.I. Khaleel
Government Advocate (Crl.Side)

ORDER

The petitioners, who were arrested and remanded to judicial custody on 13.09.2026 for the alleged offence under Section 194 of BNSS 2023 @ Sections

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103(1), 238(a), 3(5), 332(a) of BNS, 2023 in Crime No. 144 of 2026 on the file of the respondent police, seeks bail.

2. The case of the prosecution is that the deceased, Arun Kumar, aged about 32 years, who was mentally challenged since birth, was suffering from chest and stomach pain. On 31.08.2026, he locked himself inside his room and shouted in pain. On 01.09.2026, the defacto complainant found him dead on his bed. Hence, the complaint.

3. The learned counsel for the petitioners submitted that the petitioners are the mother and grandmother of the deceased, respectively. He further submitted that the deceased was mentally challenged since birth and was suffering from chest and stomach pain. He further submitted that the petitioners have been falsely implicated and that there is no foul play involved in the death of the deceased. Hence, he prayed for the grant of bail to the petitioners.

4. Per contra, the learned Government Advocate (Criminal Side) appearing for the Respondent Police reiterated the prosecution case and submitted that the deceased is the son of the first petitioner. On the date of alleged occurrence, the first petitioner compelled the deceased to get married and unable to bear the torture, the deceased died by strangulation. He further submitted that the deceased was mentally ill and that was undergoing

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treatment. However, he opposed the grant of bail to the petitioners.

5. I have given my anxious consideration to either side submissions and perused the materials available on record.

6. Considering the nature of the allegations, the mental condition of the deceased, the relationship between the parties and also considering the period of incarceration already undergone by the petitioners, this Court is inclined to grant bail to the petitioners subject to certain conditions.

7. Accordingly, the petitioners are ordered to be released on bail on their executing a separate bond for a sum of **Rs.25,000/- (Rupees Twenty Five Thousand only)** with **two sureties each**, for a like sum to the satisfaction of the **learned Judicial Magistrate, Uthangarai,** and on further conditions that:

[a] the sureties shall affix their photographs and Left Thumb Impression in the Application for Surety slip [Judicial Form No.46 annexed to 'The Criminal Rules of Practice, 2019']. The learned Magistrate shall obtain a copy of any one of the identity proofs to ensure their identity;

[b] the petitioners shall report before the respondent police daily at 10.30 a.m., until further orders;

[c] the petitioners shall not abscond either during investigation or trial;

[d] the petitioners shall not tamper with the evidence or

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witness either during investigation or trial;

[e] On breach of any of the aforementioned conditions, the learned Magistrate/Trial Court is entitled to pass appropriate orders against the petitioners in accordance with law as if the aforementioned conditions have been imposed and the petitioners released on bail by the learned Magistrate/Trial Court himself as laid down by the Hon'ble Supreme Court in **P.K.Shaji vs. State of Kerala [(2005)13 SCC 283];**

[f] If the accused thereafter absconds, a fresh FIR can be registered under Section 269 of B.N.S.

23-10-2026

DRL

Note:

1. Registry is directed to forthwith upload this order in the Official Website of this Court.

2. All concerned to act on this order being uploaded in Official Website of this Court without insisting on certified hard copies. To be noted, this order when uploaded in the official website of this Court will be watermarked and will also have a QR code.

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To

1.The Judicial Magistrate,
Uthangarai.

2. The Inspector of Police
Kallavi Police Station,
Kallavi, Krishnagiri District.

3.The Superintendent,
Special Prison for Women, Vellore.

4.The Public Prosecutor,
High Court, Madras.

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N.RAMESH, J.

DRL

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